

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 21-09**

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**HAPAG-LLOYD, A.G. and HAPAG-LLOYD (AMERICA) LLC. —POSSIBLE  
VIOLATIONS OF 46 U.S.C. § 41102(c)**

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**BUREAU OF ENFORCEMENT REQUEST TO EXTEND DEADLINE FOR  
SUBMISSION OF EXHIBIT M OF BOE APPENDIX**

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In an order dated January 6, 2022, the Administrative Law Judge (ALJ) ordered the Bureau of Enforcement (BOE) to file its brief, findings of fact, and appendix by March 11, 2022. Respondents Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC (collectively, Hapag-Lloyd or Respondent) were ordered to file their brief, findings of fact, appendix, and response by March 21, 2022.

BOE has kept its Discovery deadlines and has submitted its Opening Brief, Proposed Findings of Fact, and Appendix in good faith on March 11, 2022. Upon submission of its Confidential-Restricted BOE Opening Brief Appendix, Exhibit M in BOE Appendix was corrupted. Instead of portraying a screenshot, the pdf only displayed a white field. When BOE attempted to print Exhibit M as a hard copy to scan into a single pdf, Exhibit M only became partially visible. As of right now, Exhibit M is only visible in its native format, which is through archived Microsoft Outlook Messages. Opposing counsel has already received Exhibit M in its native format and has the entirety of Exhibit M in their possession.

Accordingly, BOE respectfully requests, under Rule 102 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), an extension of time from March 11, 2022 to March 16, 2022 to submit Exhibit M of the BOE Appendix. As BOE

has already submitted its Opening Brief, its Proposed Findings of Fact, and its Appendix—with the exception of certain fields within Exhibit M—BOE does not request that Respondents’ deadline be adjusted accordingly. The requested extension is not an undue burden on Respondents as they already have all the contents of Exhibit M in its native format as well as the rest of the BOE Appendix. Respondents have already been served BOE’s Opening Brief and Proposed Findings of Fact.

BOE is mindful of this proceeding’s expedited schedule and does not wish to impose any delays. But BOE believes this extension is necessary to have the record accurately reflect the facts before the ALJ. Due to its inability to communicate with Respondents in the short time periods between filing deadlines and due to the expedited proceeding, BOE requests that this motion be treated on an *ex parte* basis under Rule 105, 46 C.F.R. § 502.105.

For the foregoing reasons, BOE respectfully requests that the ALJ grant BOE’s request to extend the deadline for BOE’s submission of Exhibit M of the BOE Appendix in whatever format is acceptable or viewable to chambers.

DATED:     March 11, 2022

Respectfully submitted,

Serena Lei-  
Peng Tang

Digitally signed by Serena  
Lei-Peng Tang  
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## **CERTIFICATE OF SERVICE**

I hereby certify that on this 11th day of March 2022, a copy of the foregoing Motion to Extend Deadline for Submission of Exhibit M of BOE Appendix has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

Serena Lei-  
Peng Tang

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Lei-Peng Tang  
Date: 2022.03.11  
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Serena L. Tang

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